

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Julian Phillips	Team: Squad #06	CCRB Case #: 201803329	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/27/2018 2:20 PM	Location of Incident: 244 Arden Avenue Parking Lot	18 Mo. SOL 10/27/2019	Precinct: 123		
Date/Time CV Reported Fri, 04/27/2018 11:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 04/27/2018 11:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Sean Gardner	09504	954851	NARCBSI
2. POM Frank Recca	01780	951120	NARCBSI
3. DT3 Kristen White	00791	935964	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . POM Sean Gardner	Abuse: Police Officer Sean Gardner stopped § 87(2)(b)	A . Exonerated
B . POM Frank Recca	Abuse: Police Officer Frank Recca stopped § 87(2)(b)	B . Exonerated
C . DT3 Kristen White	Abuse: Detective Kristen White stopped § 87(2)(b)	C . Exonerated
D . POM Frank Recca	Abuse: Police Officer Frank Recca questioned § 87(2)(b)	D . Unsubstantiated
E . POM Sean Gardner	Abuse: Police Officer Sean Gardner frisked § 87(2)(b)	E . Substantiated
F . POM Sean Gardner	Abuse: Police Officer Sean Gardner searched § 87(2)(b)	F . Substantiated
G . POM Frank Recca	Abuse: Police Officer Frank Recca frisked § 87(2)(b)	G . Substantiated
H . POM Frank Recca	Abuse: Police Officer Frank Recca searched § 87(2)(b)	H . Unsubstantiated
I . DT3 Kristen White	Abuse: Detective Kristen White searched § 87(2)(b)	I . Unsubstantiated
J . POM Frank Recca	Abuse: Police Officer Frank Recca searched the vehicle in which § 87(2)(b) was an occupant.	J . Unsubstantiated
K . DT3 Kristen White	Abuse: Detective Kristen White searched the vehicle in which § 87(2)(b) was an occupant.	K . Unsubstantiated
L . POM Frank Recca	Abuse: Police Officer Frank Recca threatened to arrest § 87(2)(b)	L . Unsubstantiated
M . POM Sean Gardner	Discourtesy: Police Officer Sean Gardner spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . POM Frank Recca	Discourtesy: Police Officer Frank Recca spoke discourteously to § 87(2)(b)	N . Unsubstantiated
O . DT3 Kristen White	Discourtesy: Detective Kristen White spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . POM Sean Gardner	Abuse: Police Officer Sean Gardner refused to provide his name to § 87(2)(b)	P . Unsubstantiated
Q . POM Frank Recca	Abuse: Police Officer Frank Recca refused to provide his name to § 87(2)(b)	Q . Unsubstantiated
R . DT3 Kristen White	Abuse: Detective Kristen White refused to provide her name to § 87(2)(b)	R . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Officer(s)	Allegation	Investigator Recommendation
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 27, 2018, § 87(2)(b) filed this complaint with the CCRB via the on-line website.

On April 27, 2018 at approximately 2:17 p.m., § 87(2)(b) urinated in a parking lot, located at 244 Arden Avenue in Staten Island. Police Officer Sean Gardner, Police Officer Frank Recca, and Detective Kristen White, all of Narcotics Borough Staten Island, approached and stopped § 87(2)(b) (**Allegations A through C: Abuse of Authority, exonerated**). PO Recca allegedly asked § 87(2)(b) if he possessed narcotics or other contraband (**Allegation D: Abuse of Authority, unsubstantiated**). PO Gardner frisked and searched § 87(2)(b) (**Allegations E and F: Abuse of Authority, substantiated**). PO Recca also frisked § 87(2)(b) (**Allegation G: Abuse of Authority, substantiated**). PO Recca and Det. White allegedly also searched § 87(2)(b) (**Allegations H and I: Abuse of Authority, unsubstantiated**). PO Recca and Det. White allegedly searched § 87(2)(b)'s vehicle (**Allegations J and K: Abuse of Authority, unsubstantiated**). While searching the vehicle, PO Recca allegedly threatened to arrest § 87(2)(b) (**Allegation L: Abuse of Authority, unsubstantiated**). Over the course of their interaction, PO Gardner, PO Recca, and Det. White all allegedly used profanity while addressing § 87(2)(b) (**Allegations M through O: Discourtesy, unsubstantiated**). PO Gardner, PO Recca, and Det. White allegedly refused to identify themselves to § 87(2)(b) upon his request (**Allegations P through R: Abuse of Authority, unsubstantiated**). § 87(4-b), § 87(2)(g)

The officers left the scene without arresting or issuing a summons to § 87(2)(b)

There was no video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Sean Gardner stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Frank Recca stopped § 87(2)(b)

Allegation (C) Abuse of Authority: Detective Kristen White stopped § 87(2)(b)

In his sworn statement to the CCRB (01 Board Review), § 87(2)(b) reported that, at the time of the incident, he drove into the parking lot of 244 Arden Avenue, drove down an alleyway behind a row of businesses, and stopped his vehicle in the rear loading area of a Key Foods supermarket, stopping his vehicle approximately one car length away from a dumpster. § 87(2)(b) denied that there were any items inside his vehicle (with the exception of a compact disk), and specifically denied that the vehicle contained any prescription pills. § 87(2)(b) then urinated beside the dumpster. A second vehicle pulled up next to § 87(2)(b)'s vehicle and three officers, identified by the investigation as PO Gardner, PO Recca, and Det. White, approached § 87(2)(b). § 87(2)(b) began to shake and otherwise display nervousness. PO Recca asked § 87(2)(b) why he was urinating.

In their statements to the CCRB (02 Board Review, 03 Board Review, 04 Board Review), PO Gardner, PO Recca, and Det. White were consistent in stating that, while they were driving through the parking lot of 244 Arden Avenue on routine patrol, they clearly observed § 87(2)(b) urinating. § 87(2)(b) was standing approximately ten feet away from his vehicle at this time. None of the officers stated that they suspected § 87(2)(b) of any other crimes or violations at this time (although PO Recca noted that § 87(2)(b)'s urination was visible to

civilians in the parking lot, and Det. White noted that § 87(2)(b)'s vehicle was not stopped in a marked parking spot). The three officers immediately approached § 87(2)(b) and began speaking to him.

Section 116-118 of the New York City Administrative Code (05 Board Review) states, “No swill, brine, offensive animal matter, noxious liquid, or other filthy matter of any kind, shall be allowed by any person to fall upon or run into any street, or public place, or be taken to or put therein.”

§ 87(2)(g)

It is therefore recommended that **Allegations A through C** be closed as **exonerated**.

Allegation (D) Abuse of Authority: Police Officer Frank Recca questioned § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, immediately upon approaching him, PO Recca asked where he possessed narcotics and syringes. Neither PO Recca, nor PO Gardner, nor PO White asked § 87(2)(b) any other questions.

In his statement to the CCRB, PO Recca reported that, at the time of this incident, he considered 244 Arden Avenue to be a “drug prone location” because of a history of heroin overdoses and associated arrests in the vicinity. Immediately upon approaching § 87(2)(b) PO Recca observed a prescription pill bottle in plain view placed on top of the center console inside § 87(2)(b)'s vehicle. PO Recca was not able to see if the bottle carried a label. PO Recca then asked § 87(2)(b) if his vehicle contained “anything illegal.” § 87(2)(b) responded, “Yes,” PO Recca replied, “What?,” and § 87(2)(b) revised his response and denied that the vehicle contained anything illegal. PO Recca denied asking § 87(2)(b) any questions about narcotics.

In his statement to the CCRB, PO Gardner reported that, upon approaching § 87(2)(b) the officers engaged in a short conversation with § 87(2)(b) during which § 87(2)(b) slowly moved into a position directly beside his vehicle. PO Gardner observed a prescription pill bottle in plain view in a cup holder in the center console of § 87(2)(b)'s vehicle. PO Gardner was not able to see if a label was affixed to this pill bottle. PO Recca asked § 87(2)(b) if there was “anything illegal” in his vehicle. § 87(2)(b) responded, “Yes,” PO Recca replied, “What?,” and § 87(2)(b) revised his response and denied that the vehicle contained anything illegal. PO Gardner did not know if PO Recca also asked § 87(2)(b) where he possessed narcotics or associated paraphernalia.

In her statement to the CCRB, Det. White reported that, upon approaching § 87(2)(b) the officers engaged in a short conversation with § 87(2)(b). During this conversation, either PO Gardner or PO Recca stated that he had observed a prescription pill bottle in plain view in the center console § 87(2)(b)'s vehicle (Det. White had not observed this bottle herself). Det. White did not recall any questions that the officers asked § 87(2)(b) and she specifically denied recalling PO Recca asking § 87(2)(b) if he possessed narcotics or associated paraphernalia or had anything illegal in his vehicle.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation (E) Abuse of Authority: Police Officer Sean Gardner frisked § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Sean Gardner searched § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Frank Recca frisked § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Frank Recca searched § 87(2)(b)

Allegation (I) Abuse of Authority: Detective Kristen White searched § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, upon first approaching him, PO Gardner, PO Recca, and Det. White all participated in frisking and searching him. § 87(2)(b) specifically reported that PO Recca reached into § 87(2)(b)'s front pants pocket and removed his mobile phone, PO Gardner frisked § 87(2)(b)'s torso, and PO Recca and Det. White searched and removed items from § 87(2)(b)'s remaining pockets.

In his statement to the CCRB, PO Gardner reported that, in the officers' initial interaction with § 87(2)(b) the following factors elevated his suspicion that § 87(2)(b) may have been engaged in additional criminality besides public urination: the fact that § 87(2)(b) had moved approximately 10 feet towards his vehicle during his initial conversation with the officers, the fact that § 87(2)(b) had initially replied, "Yes" when asked if his vehicle contained anything illegal, and the visible presence of the prescription pill bottle inside § 87(2)(b)'s vehicle. There were visible bulges in § 87(2)(b)'s front pants pockets, which PO Gardner could not describe. PO Gardner frisked § 87(2)(b)'s pockets and waistband area. When asked why he had done so, PO Gardner stated that he wanted to ensure that § 87(2)(b) was not carrying any weapons in these locations. When asked, PO Gardner stated that he did not observe any specific indication that there were weapons in § 87(2)(b)'s pockets or waistband area. While frisking § 87(2)(b) PO Gardner identified keys and a wallet in § 87(2)(b)'s pockets. PO Gardner ordered § 87(2)(b) to remove the keys from his pocket, and § 87(2)(b) complied. PO Gardner stated that he had ordered § 87(2)(b) to remove the keys from his pocket because he wished to see them, that he had already identified them as keys before ordering § 87(2)(b) to remove them, and that he did not frisk the pocket a second time after § 87(2)(b) had removed the keys. PO Gardner did not recall PO Recca removing a mobile phone from § 87(2)(b)'s pocket, and stated that he did not know if PO Recca or Det. White ever frisked or searched § 87(2)(b).

In his statement to the CCRB, PO Recca reported that, during his initial interaction with § 87(2)(b) he had no indication that § 87(2)(b) had committed any crimes or violations besides public urination. PO Recca was

struck, however, by the fact that § 87(2)(b) had first acknowledged and then immediately denied that his vehicle contained “anything illegal.” PO Recca frisked § 87(2)(b)’s front and rear pants pockets. PO Recca stated that, based on § 87(2)(b)’s response to the question as to whether his vehicle contained “anything illegal,” he assessed that it was necessary to ensure that § 87(2)(b) was not carrying any weapons. PO Recca denied that he had any other reason for frisking § 87(2)(b). During the frisk, PO Recca first observed a bulge in § 87(2)(b)’s rear pants pocket, which he subsequently frisked. PO Recca denied reaching into § 87(2)(b)’s pockets at any point. PO Recca denied that either of his partners frisked § 87(2)(b) or reached into his pockets.

In her statement to the CCRB, Det. White denied frisking § 87(2)(b) or reaching into his pockets, and stated that she did not recall either PO Gardner or PO Recca doing so.

Courts have repeatedly held since Terry v. Ohio, 392 U.S. 1 (1967) (06 Board Review) that, while officers may stop a civilian based on suspicion of any criminality, absent an arrest, they may only proceed to frisk and/or search this civilian if they “reasonably” believe that he is “armed and presently dangerous.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations E, F and G be closed as substantiated** and **Allegations H and I be closed as unsubstantiated**.

Allegation (J) Abuse of Authority: Police Officer Frank Recca searched the vehicle in which § 87(2)(b) was an occupant.

Allegation (K) Abuse of Authority: Detective Kristen White searched the vehicle in which § 87(2)(b) was an occupant.

In his sworn statement to the CCRB, § 87(2)(b) reported that, after the officers had frisked and searched him, PO Recca used § 87(2)(b)’s key fob to unlock § 87(2)(b)’s vehicle. PO Recca and PO White then searched § 87(2)(b)’s vehicle, including opening the glove compartment and looking underneath the seats and floor mats. When initially describing the incident, § 87(2)(b) asserted that the officers had asked him if he could search the vehicle, and he had stated that they could. When asked for additional details later in the interview, however, § 87(2)(b) revised his testimony and stated that the officers had not asked him for consent to search the vehicle and that he had neither verbally given nor refused consent.

In his statement to the CCRB, PO Gardner reported that § 87(2)(b) verbally consented to the officers' searching his vehicle. PO Gardner could not recall if the officers asked § 87(2)(b) for consent to search the vehicle or if § 87(2)(b) volunteered this consent unprompted. PO Recca and PO Gardner then entered the front driver-side and passenger-side doors and searched the cup holder in the center console of the vehicle. PO Gardner could not recall how the doors of the vehicle were opened. PO Gardner did not see if PO Recca or Det. White opened any compartments inside the vehicle.

In his statement to the CCRB, PO Recca reported that, after he asked § 87(2)(b) if his vehicle contained "anything illegal," § 87(2)(b) verbally stated that, if the officers wished, they could search the vehicle. No officer asked § 87(2)(b) for permission to search the vehicle prior to him volunteering consent. PO Recca entered the vehicle through the front driver-side door (which had been ajar throughout the interaction), examined the prescription pill bottle on the center console, and opened the glove compartment. PO Recca did not recall any other officer searching the vehicle.

In her statement to the CCRB, Det. White reported that she did not recall if § 87(2)(b) was asked if his vehicle contained "anything illegal," did not recall the possibility of the officers entering the vehicle being discussed with § 87(2)(b) and did not recall § 87(2)(b) verbally consenting to a search of his vehicle. Det. White reported that PO Recca entered § 87(2)(b)'s vehicle through the front driver-side door and examined the prescription pill bottle in the center console. Det. White did not see if PO Recca searched anywhere inside the vehicle besides examining the prescription pill bottle. Det. White denied entering the vehicle herself.

§ 87(2)(g)

Courts have held, as in People v. Boyd, 188 A.D.2d 239 (1993) (07 Board Review) that it is improper for officers to ask accusatory questions and/or request consent to search absent founded suspicion of criminality. Courts have further held, as in the same case, that a civilian's otherwise seemingly voluntary consent to search is invalid if it follows such improper questioning or an improper request for consent.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegations J and K** be closed as **unsubstantiated**.

Allegation (L) Abuse of Authority: Police Officer Frank Recca threatened to arrest § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, as PO Recca was searching his vehicle, he said, “If we find anything in your car, any pill, you are going to jail.”

In his statement to the CCRB, PO Recca denied telling § 87(2)(b) that, if the officers located anything inside his vehicle, § 87(2)(b) would be arrested. In his statement to the CCRB, PO Gardner stated that he did not hear PO Recca telling § 87(2)(b) that, if the officers located anything inside his vehicle, § 87(2)(b) would be arrested.

§ 87(2)(g) It is therefore recommended that Allegation L be closed as **unsubstantiated**.

Allegation (M) Discourtesy: Police Officer Sean Gardner spoke discourteously to § 87(2)(b)

Allegation (N) Discourtesy: Police Officer Frank Recca spoke discourteously to § 87(2)(b)

Allegation (O) Discourtesy: Detective Kristen White spoke discourteously to § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that PO Gardner, PO Recca, and Det. White all repeatedly used the word “fuck” while speaking to him. § 87(2)(b) reported that, over the course of the incident, PO Gardner used the word “fuck” a total of three times, and PO Recca used the word “fuck” a total of 18 times, and Det. White used the word “fuck” a total of three times.

In their statements to the CCRB, PO Gardner, PO Recca, and Det. White all denied using any profanity in speaking to § 87(2)(b) and specifically denied using the word “fuck” in the multiple specific contexts alleged by § 87(2)(b). All three officers further denied hearing their partners use any profanity.

§ 87(2)(g) It is therefore recommended that **Allegations M through O** be closed as **unsubstantiated**.

Allegation (P) Abuse of Authority: Police Officer Sean Gardner refused to provide his name to § 87(2)(b)

Allegation (Q) Abuse of Authority: Police Officer Frank Recca refused to provide his name to § 87(2)(b)

Allegation (R) Abuse of Authority: Detective Kristen White refused to provide her name to § 87(2)(b)

In his sworn statement to the CCRB, § 87(2)(b) reported that, during the incident, he asked PO Gardner, PO Recca, and Det. White for their names. PO Recca replied by stating that the officers were “borough-wide,” and PO Gardner and Det. White replied by stating that § 87(2)(b) would be unable to identify the officers.

In their statements to the CCRB, PO Gardner and PO Recca both denied that § 87(2)(b) ever asked for any of the officers' names, and further denied that any of the officers ever failed to identify herself or himself upon request. In her statement to the CCRB, Det. White reported that she did not recall § 87(2)(b) asking for any of the officers' identifying information and did not recall either PO Gardner or PO Recca failing to identify himself upon request. Det. White further reported that, if § 87(2)(b) had asked for her identifying information, she would have identified herself as a matter of course.

§ 87(2)(g)

It is therefore recommended that **Allegations P through R** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (09 Board Review). § 87(2)(b)
- PO Gardner has been a member-of-service for five years and this is the first CCRB complaint to which he has been a subject (10 Board Review).
- PO Recca has been a member of the NYPD for seven years and has been a subject in two CCRB complaints and four allegations, none of which was substantiated (11 Board Review).
 - § 87(2)(b)

- In CCRB case 201205694, PO Recca was alleged to have frisked, searched, and threatened to arrest a civilian. These allegations were exonerated.
- Det. White has been a member of the NYPD for 14 years and has been a subject in six complaints and eleven allegations, none of which was substantiated (12 Board Review).
 - In CCRB case 201005590, Det. White was alleged to have searched a civilian and to have failed to provide her identifying information upon request. This case was closed as complainant uncooperative.
 - In CCRB case 201107124, Det. White was alleged to have searched a civilian's vehicle following his arrest. This allegation was closed as unsubstantiated.
 - In CCRB case 201109128, Det. White was alleged to have used the word "fuck" in speaking to a civilian who was under arrest. This allegation was closed as unsubstantiated.
 - In CCRB case 201204624, Det. White was alleged to have frisked and searched a civilian following a vehicle stop. This case was closed as complainant uncooperative.
 - In CCRB case 201412767, Det. White was alleged to have used the word "fuck" in speaking to a civilian. This allegation was closed as unsubstantiated.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A Freedom of Information Law request for Notice of Claim was submitted to the New York City Office of the Comptroller on November 8, 2018. Any responsive Notice of Claim will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date